

International Islamic University Chittagong (IIUC)
Institutional Quality Assurance Cell (IQAC)



Table 1: Lesson Plan (Spring 2025)

Name of the Department: Center for General Education Department

Table 2: Template of Lesson Plan

Part-A:			
1	Course No./Course Code: URED 3503		
2	Course Title: Political Thoughts and Social Behavior		
3	Course Type: GED		
4	Year/Level/Semester/Term: 3 rd year / 5 th semester		
5	Academic Session: Spring 2024		
6	Course Teacher/Instructor: Obaidullah		
7	Pre-requisite (If any): N/A		
8	Credit Value: 1/2		
9	Contact Hours: 2		
10	Total Marks: 100		
11	Rationale of the Course: Islam demands that everyone perform the entire activity according to his belief. This course will help to create a relationship between the beliefs and actions of a Muslim and make his activities perfect.		
12	Course Objectives: ➤ To help the students demonstrate an in-depth understanding of their real position in this temporary world ➤ To understand their relationship with the state and society ➤ To help them in performing their duties and responsibilities towards their state, society, and humanity at large		
13	Course Learning Outcomes (CLOs) and Mapping of CLOs with Program Learning Outcomes (PLOs) (Note: If required add /delete columns or rows)		
Course Learning Outcomes (CLO) (3-5)		IIUC Mission1	IIUC Mission 2
1. Understand the nature of worldly life and the real position of human being here			
2. Understand how to build proper relationships between governor & governed, state & citizen, and be able to perform duties and responsibilities towards the state.			
3. Understand the social relationships through understanding the family, kinship, neighborhood, and other general relationships with whole humankind and the entire material and immaterial universe.			
4. Provide knowledge with Islamic insight from their practical life			

Part-B:					
14.Course plan specifying content, CLOs, Co-curricular activities (if any), teaching learning and assessment strategy mapped with CLOs					
Section-A, Mid Term: 30 Marks					
Chapter	Week	Chapter Title & Outline	Teaching-Learning Strategy	Assessment Strategy	Corresponding CLOs
01	Traditional Politics & Islamic Politics				
	01	Meaning of Politics, Islamic Politics, Fundamental Elements of Islamic Politics	Lecture	CIE (Q/A)	02
	02	Basic Principles of Islamic Political System, Conventional Political System and Islam	Lecture	CIE (Q/A)	02
02	Shariah & Constitution				
	03	Meaning and sources of <i>Shariah</i>	Lecture	Assignment	02, 03
	04	Definition, contents, sources of Shariah, and main features of the Islamic constitution	Lecture	CIE (Q/A)	02
03	State, Government, Citizen & Citizenship				
	05	State, Government, and Organs of Government	Lecture	CIE (Q/A)	02
	06	Meaning & Types of citizenship and Rights & duties of citizens	Lecture	CIE (Q/A)	02
Midterm Examination: 30, Assignment/ Quizzes/Class test: 10, Attendance: 10					

	Section-B: Final Examination 50 Marks				
Chapter	Week	Chapter Title & Outline	Teaching-Learning Strategy	Assessment Strategy	Corresponding CLOs
04		Marriage, Family, Women and Matrimonial Dispute Resolution			
	07	Introduction to Social Dealings and Behavior in Islam	Lecture	CIE (Q/A)	01
	08	Marriage and Family	Lecture	CIE (Q/A)	03
	09	Matrimonial Dispute Resolution and Divorce	Lecture	CIE (Q/A)	03
	10	Status, rights and duties of women in Islam	Lecture	CIE (Q/A)	03
05		Family and Social Relationship	Lecture	CIE (Q/A)	03
	11	Husband-wife Relationship, Parent-Childs Relationship,	Lecture		03
	12	Kinship, Neighborhood, Wide circle of relationship	Lecture		03, 04
06		Economic System and Law of Inheritance in Islam			
	13	Basic Principle of the Islamic Economic System	Lecture	CIE (Q/A)	03, 04
	14	Certain Principles in the distribution of inheritance	Lecture		03, 04
07		Principles of permissibility and prohibition	Lecture		03
	15	Principles of permissibility and prohibition in Islam	Lecture		03, 04
	16	Food & Drinking	Lecture		
	17	Islamic Law regarding Dress both for men and women	Lecture	CIE (Q/A)	03
08		Adab & Akhlaq			
	18	Duties & Responsibilities	Lecture		
	19	Social Manners	Lecture		
	20	Basic Virtues	Lecture		
	21	Bad Conduct & Prohibitions	Lecture		
	22-30	Review Classes	Lecture	SEE: 50	03, 04

Part-C:	
15. Assessment & Evaluation	
1	Assessment Strategy
2	Marks distribution: Continuous Assessment (CIE): Attendance & performance 10 Assignment: 10 Midterm 30 Total: 50 a) Summative (SEE): 50
3	Make-up Procedures as per IIUC exam rules.

Part-D:	
16. Learning Materials	
1	Recommended Readings: 1. Bhuyan, Shafiul Alam (2007), <i>The Government and Politics in Islam</i> , Dhaka: Noor Publications. 2. Sarwar, G. (1982). <i>Islam, beliefs and teachings</i> : Muslim educational trust.
2	Supplementary Readings: 1. Islam, A. B. M. M. (2005). <i>Islamic Constitution: Quranic and Sunnatic Perspectives</i> . 2. Islamic Legal System, Advocate Ansar Ali 3. Hannan, S. A. (2017). <i>Social Laws of Islam</i> . Dhaka: Bangladesh Institute of Islamic Thought (BIIT)
3	Others. (As applicable for the discipline/academic program)

Integrating knowledge *Naqli* with knowledge *Aqli*

Political Thoughts and Social Behavior

Preface

All the praises and thanks be to Allah who has enabled me to complete my first book titled “Integrated Political Thoughts” integrating *tawhidi* epistemology on politics as just Allah (SWT) created us by combining the soul and our material body so we need guidance from Him to develop both our body and soul simultaneously. Hence this book reflects an integration of Islamic epistemology with our political life.

Politics is nothing but the management of public affairs. Putting an Islamic insight, it may be defined as the management of public affairs both spiritual and material according to Islamic shariah. The main purpose of human life is to worship Allah alone. So, every effort that supports our main purpose in life is termed *khilafah*. That is the duty that is assigned to us, not to another creation.

This book has been designed to serve as a text for Islamic Studies courses taught in IIUC, a complementary book for political thoughts and social behavior. Hence it contains three chapters only. Chapter One discussed politics generally and Islamic politics especially. It also discussed the basic principles of Islamic politics and the fundamental differences between conventional politics and the Islamic political system. To run state and public affairs we need Law and constitution, chapter two discussed *Shariah* as the state law and constitution as the basic document of a state. Chapter three is a bit longer than the first two chapters it covers state, government, and citizenship.

It is hoped that students and all readers of the book will get immense benefits as the book will provide them with a holistic view to lead their worldly lives.

Political Thoughts and Social Behavior The objective of the course
Islam demands its followers to perform their entire activities according to its eternal belief system. *Tawheed* (oneness of Allah) is the nucleus point of that system. *Risalah* and *Akhirah* are another two essential articles of that belief system. This course will help the students create a relationship between their beliefs and actions and make their activities perfect accordingly. So, the main objective of this course is to discuss how to deal with their worldly life based on *Tawheed* following the footsteps of the Prophet (SAAS) exactly.

However, there are some specific objectives for this course. These are as follows-

- To help the students understand their natural position in this temporary world.
- to make them understand their relationship with their state and society
- to help them perform their duties and responsibilities towards their family, community, state, and humanity at large

Part A: Political Thoughts

This part aims to teach the students how to relate themselves to the state and Government from an Islamic perspective.

Chapter 01 Traditional Politics and Islamic Politics

The objective of this chapter

The main objective of this chapter is to provide students with the knowledge for a clear understanding of politics from an Islamic perspective.

There are some specific objectives for this chapter. These are-

- ❖ to describe the meaning of the word politics from its origin
- ❖ to find out the connectivity of the word politics and *siyasah*
- ❖ to provide an understanding of Islamic politics from the given definition
- ❖ to provide them with proper information to evaluate the basic principles of the Islamic political system and
- ❖ to make them able to distinguish between Islamic politics and conventional political systems

Outline of this chapter

- ✓ Meaning of Politics
- ✓ Meaning of Islamic Politics
- ✓ Fundamental Elements of Islamic Politics
- ✓ Principles of the Islamic Political System
- ✓ Main difference between conventional and Islamic political systems

L 01: Polis - Politics - *Siyasah*

Where does the word "politics" originate from?

The Greek word polis

What does "polis" mean?

City

What is the Arabic word for politics?

Siyasah

What does *Siyasah* mean?

To establish accountable and responsible leadership.

What does politics mean?

Politics is management, Rectification, adjustment, etc.

What is politics?

It is the management of public affairs.

What is Islamic politics?

1. The management of public affairs, both spiritual and material, according to Islamic shariah
2. It is to conduct the public affairs concerning either to state or religion following al-*Shari'ah* (Islamic Law), which is known to us as *khilafat* (Representation)

What are the three fundamental elements of Islamic politics?

Islamic politics is based on three fundamental elements¹ *Tawhid* (Unity of Allah) *Risalat* (Prophethood) and *Khilafah* (vicegerency).

What does "tawhid" mean in political parlance?

Tawhid means to make something one. Terminologically, *tawhid* is to believe in Allah's oneness, realize it, and maintain it in every aspect of our lives. From political terminology, it means Allah is the source of all power. He is the sovereign lawgiver, and Sovereignty belongs to Him alone. No one can individually or collectively claim Sovereignty. He is the only lawgiver, and humankind, as His servants and vicegerents are bound to obey His laws and orders in every aspect of their lives.

What does *Risalah* mean?

Al-Risalah means the message. *Al-Rasul* means "the messenger. Allah (SWT) is the only lawgiver, and humankind is His servant and vicegerents. So, they are bound to obey His laws. However, the laws of Allah must come to them. In this regard, the *Risalah* is the media through which humankind has Allah's laws. As the orders of Allah are the primary source of laws, the *Risalah* has provided the holy Quran and Sunnah for humankind to make them available.

What did the *Risalah* deliver so that we could get Allah's laws?

The *Risalah* provided us with the holy Quran and the Sunnah of the Prophet (SAAS).

What is *Khilafah*?

Khilafah means representation. *Khalifah* is the representative. A representative should never behave like the one who has made him such. He has to follow the instructions of the one who has made him the representative. Allah is the Lord of this universe and humankind is the *Khalifah* of Allah on the earth to implement His laws here. From this point of view, *Khalifah* means:

- ◆ "One who exercises delegated power on behalf of the Supreme Authority." In this way, he is not the master but the deputy of the One who has entrusted him with power.
- ◆ A *Khalifah* is entrusted with certain powers to govern/manage the world;
- ◆ A *Khalifah* is given freedom of action but he has to choose the right thing and leave the wrong one;
- ◆ A *Khalifah* has duties and responsibilities to His Creator; to himself, to his fellow men, and to other creatures of Allah.
- ◆ A *Khalifah* is equipped with knowledge (of everything, good and bad, right and wrong) so that he can establish justice.
- ◆ Allah provided man with everything he needs to fulfill his responsibilities; material and immaterial things.
- ◆ A *Khalifah* will be held responsible and accountable for all his actions on the Day of Judgment.
- ◆ A *Khalifah* is promised Paradise if he succeeds in fulfilling his responsibilities and Hellfire if he fails to do so.

¹ Nizam Al Hayat fi Al Islam: Abul A'la Al Maududi, P 21, published by Mu'assasa al Risalah, Beirut, 1980.

- ◆ Allah has from time to time sent Prophets and Messengers to guide the children of Adam

L02: What are the six basic principles of the Islamic political system?

The Basic Principles of the Islamic Political System are-

- Sovereignty of Allah
- *Khilafa* of humankind
- Legislation by *Shura*
- Accountability of the Government
- Independence of the Judiciary and
- Equality before the Law

L03: The main difference between conventional and Islamic political systems

Conventional political systems are based on some contemporary man-made ideologies that have come into existence with slogans for establishing human equality and individual freedom. However, the thinking of the originators of these ideologies is imperfect and partial, so a brief discussion of some of these ideologies, such as capitalism, socialism, secularism, and democracy, is necessary before we discuss the differences between Islamic politics and the conventional political system.

Capitalism

Capitalism is an economic system in which individuals own industries and business farms and carry on production control, distributing and exchanging goods and services through a complex and hostile competing market system. Karl Marx introduced it in the 19th century while refuting this system by pointing out that capitalism turns inhabitants into two antagonistic and conflicting classes: the upper class (owner of the property) and the lower class (laborer). In a capitalist system, few people own the means of producing and distributing goods, while most people sell their ability to work. Adam Smith was the founder of modern capitalism and developed essential economic principles. The central theme of the system is that everybody can possess property under absolute control and earn money on production.

However, the motive for producing goods and services is to sell them for profit rather than to satisfy people's needs. This class division and profit-making motive are at the root of most of the world's problems, from starvation to war, alienation, and crime.

Socialism

Karl Marx originated scientific socialism and advocated abolishing individual ownership. He suggested that the state should own and control the country's land, transport, natural resources, chief industries, etc. William Sumner argued that socialism is any device or doctrine that seeks to save individuals from the difficulties of the struggle for existence and the competition of life by the state's intervention.

Socialists have failed to present a correct world outlook and formulate an ideology capable of solving the diverse problems of human society, leading to the Nazi holocaust and the Union of Soviet Socialist Republics. This failure is due to their materialist worldview and lack of understanding of man's nature. Life must not be economics-oriented, but a sense of human dignity should always be there.

Secularism

Secularism is a system of political or social philosophy that rejects all forms of religious faith and worship, and its lexicological meaning is worldly, temporal (opposite to eternal). It belongs to worldly things or things that are not regarded as religious and spiritual. According to the

"Fiqh Al Dawlah fi al Islam", it derives from Aristotelian philosophy that Allah has no relation to worldly affairs.

A brief History of secularism

The secularist doctrine results from two hundred years of struggle between church and state. The Roman Empire ruled vast areas of Europe in the name of God, but their ruling system did not comply with divine guidance. This inconsistency led to the imposition of unscientific beliefs of laws of nature and the material world and the beginning of modern science.

Martin Luther formed a conciliatory movement, and the two sides reached a settlement that religious functions no more in the state except the elected figure shall take oath before the church. This conflict and wars were in progress during the adulteration of the Christian religion.

So, it is important to remember that religion is part of our lives that Allah created the world and everything in it, and that life is a single unit that needs His revealed guidance. Kamal Atatürk established the first secularist state in Turkey among Muslim countries, which banned Islamic dress and dispensed the Law of *Shari'ah*.

Democracy

The term democracy is derived from the Latin words "demo" and "Crazy" and is a system of government by the whole people of a country. Abraham Lincoln defines it as "the government of the people, by the people and for the people". According to R C Agarwal, it originated from the Greek words "Demos" and "Cratos", which denote people and power. According to Dr. Yousuf al Qaradawi, genuine democracy occurs. When the majority of the people elect their governor or the system that governs them. The government is accountable to the people.

A brief history of democracy

During the Homeric period, tribal chiefs ruled the Greek city-states, but their powers were dismissed and passed into the hands of oligarchs. A democratic constitution was set up in the fifth century CA, regarded as the first democratic state in history. This system allowed citizens to participate actively in state affairs, including holding public office and deciding public matters. However, it was limited to a small area of the Greek, leading to internal dissension and jealousy among the cities.

The negative impact of democracy

Democracy is wrong because it does not seek out what is best for the citizens but instead acts from the selfish whims of the majority. It first flourished in ancient Athens, but most inhabitants were enslaved people, servants, women, and children. There is no majority in a democratic system.

The fundamental distinctions between the conventional and Islamic political system

Basis	Conventional Politics	Islamic Politics
Sovereignty	In the conventional political system, the sovereignty belongs to the people.	While in the Islamic political system, sovereignty belongs to Allah.
Lawmaking authority	In a conventional system, the people make Law;	Whereas; in the Islamic system, the law-giver is Allah.
Class division	In the conventional system, there is class division; some of them are the rulers and the others are subjects.	But in the Islamic system, the absolute ruler is Allah and all people are His vicegerents alike in their respective fields.
Nature of law	In the conventional system, the laws are changeable with the passage of time and demand,	But Islamic laws are unchangeable.
Equality	The conventional laws are not equal for all mankind	The Islamic laws are equal for all mankind

The fundamental difference between conventional and Islamic political systems

The distinction between Conventional and Islamic Political Systems is that in the conventional political system, man-made laws rule the people, while in the Islamic political system; the people are ruled by the laws of Allah (SWT). Islam is a moderate system that does not take away individual freedom but does not believe in leveling down differences by force. In the Islamic system, Allah is the absolute ruler, and all people are His vicegerents alike in their respective fields. The laws are changeable with the passage of time and demand, but Islamic laws are unchangeable. Islamic laws are equal for all humankind, while conventional laws are contrary.

Chapter 02

Shariah and constitution

Objectives of this chapter,

The main objective of this chapter is to provide students with knowledge about *Shariah* as Islamic Law and the constitution as a fundamental state document.

There are some specific objectives for this chapter. These are-

- To describe the meaning and sources of *Shariah*
- To discuss the differences between *Shariah* and man-made Law
- To provide an idea about the constitution generally and the Islamic constitution, especially
- To discuss the main features of an Islamic constitution

Outline of this chapter,

The meaning and sources of *shariah*.

The differences between *Shariah* and man-made Law the Constitution and the Islamic Constitution.

The main features of an Islamic constitution.

L03: *Shariah*

What does *Shariah* mean literally?

To endorse Law, to make something permissible or allowed.

In what meaning the word *shariah* was being used by pre-Islamic Arabs?

To mean water hole, drinking place, approach to watering-place or straightway to the drinking place.

How can we define *Shariah* terminologically?

1. *Shariah* is the path leading to Allah, shown by Allah and His Messenger to humankind.
2. The moral and social guidance derived from the commands and actions portrayed within Islamic sacred texts
3. The details of the Islamic way of life

Sources of *shariah*

In how many categories the sources of *sharia* are divided basically? In two categories - primary sources and secondary sources.

What are the primary sources of *sharia*?

Al-Quran and *As-Sunna*

Secondary sources of *sharia* are divided into how many types?

Two types- main secondary and additional secondary

What are the main secondary sources of *Shari`ah*?

Ijma and *Qiyas* (consensus of legally trained scholars and analogy).

Can you name some additional secondary sources of *Shariah*?

Yes. Some other secondary sources are -

1. *Istihsan* (juristic preference),
2. *Istishab* (continuance),
3. *Masalih al Mursalah* (the most beneficial for the community)
4. *Adat and Uruf* (habitual and customary Law),
5. *sadd ad-darā'ī* (blocking the means), and
6. *šar' man qablanā* (laws revealed before the advent of Islam).

L04: Difference between *Shari'ah* and Man-made laws

How does *sharia* differ from artificial laws?

Shariah differs from artificial in various ways-

Basis	Man-made Law	<i>Shariah</i>
Completeness	Men make laws when they feel the need. These laws start with a few and then increase over the years.	Islamic Law is complete and perfect and includes all aspects of human life
Permanency	Artificial laws are not permanent	On the other hand, <i>Sharia'h</i> is permanent for all people all the time
Limitation of knowledge	Man does not know the future	Allah is All-knowing and All- powerful. He is the Most Wise and His laws are the best and Complete.
Creation and creator	Man is a created being. His laws are the creation of the created being.	Allah is the creator, and His laws are for the men, His creations.
Universality	Man-made laws may be suitable for a particular nation or country. They cannot be universal.	Allah's laws are for all nations, all countries, and times. They are universal.
Selfishness	Man-made laws suit their own needs	Allah is above all needs, and His laws are for the good of all people and not for a few selfish people.

**L05: Human activities in the viewpoint of *Shariah*.
How does *Shariah* classify our activities?**

Shariah classifies all human activities into two groups:

- a) *Ma'rufat* (virtues) and
- b) *Munkarat* (evils)

Then the *Ma'rufat* are classified into the following three categories:

- 1) *fard/wajib* (mandatory or obligatory)
- 2) *Mustshab / Mandub/ Matlub* (recommendatory/ likely/expected).
- 3) *Mubah* (permissible).

Munkarat are classified into two categories:

- 1) *Haram* (absolutely prohibited)
- 2) *Makruh* (disliked)

L06; Constitution and Islamic Constitution

How can we define the Constitution?

The set of principles that are applied for the administration (executive, legislative, and Judiciary) of a state

What is an Islamic constitution?

"A set of rules given by Allah, His Messenger, and practices of the immediate successors of the Prophet (SAAS) according to which the power, rights, and obligations of the ruler and the citizens and the relations of both can be determined."

Contents of a constitution cover what?

The contents of a constitution cover the state principle, the rights of the citizen, the pattern of the Government, etc.

Do you think the Contents of the constitutions of all countries are the same?

The contents of the constitutions of all democratic and secular countries are almost the same.

Is there any difference between the Islamic constitution and the constitution of a democratic country?

Since the contents cover the state principle, rights of the citizen, the pattern of the Government, etc., an Islamic constitution adopted them, as the subject matters are almost the same.

Sources Islamic constitution

Islamic Shariah - its primary, secondary, and all additional sources.

The basis of the Islamic constitution is *Shariah*, the Islamic Law. It means that a constitution to be Islamic must be based on Islamic Law.

L07: What are the main features of the Islamic constitution?

- 1. Supremacy of *Shari'ah*
- 2. Administration through consultation
- 3. All wealth belonged to Allah
- 4. Citizen share their property for the well-being of their fellow human being
- 5. It acts as the mouthpiece of the Government

6. The role of public media is in the interest of Muslims and Islam
7. The Government is the savior of distressed and oppressed people
8. Government is duty-bound to produce basic needs
9. The Government is the guardian of the building of good character
10. It produces Allah-fearing and hereafter-faced citizen

Do you think the Islamic constitution and constitutional Government are something new?

It is to be noted that the Islamic constitution and constitutional Government are far earlier than the present form of secular constitution and constitutional Government.

When did the Islamic constitution take its shape and practice?

Islamic constitution took its shape and practice right from the time of Prophet Muhammad (SAAS) in the year 622 CE, which was the year of his formation of the state of Medina under his able leadership.

Chapter 03

State and Government

Objectives of this chapter

The main objective of this chapter is to provide the students with the basic concepts about the state and Government.

There are some specific objectives for this chapter. These are-

- To describe the meaning of the state and Government
- To discuss the relationship between the state and the Government
- To provide basic knowledge about three organs of the Government

Outline of the chapter

The concept of the state and Government

The relationship between the state and the Government

Basic knowledge about three organs of the Government/State the executive

The legislative The Judiciary

L08: What is Government?

The people in charge of a country, a state, or a city.

What does the Government do?

It provides stability and services.

How does the Government provide stability?

Maintaining order within a country and protecting the country's borders from outside attack

What does the Government do to maintain order within a country?

It makes laws and enforces laws to protect people's rights.

What does the Government do to protect the country from outside attacks?

They organize a country's military defenses and make agreements with other countries to keep the peace.

What are the services that the Government provides?

It provides many services. Such as schools, parks, sewage systems, and streets and highways. They print money, make coins, and generally regulate or control activities such as trade and transportation. Government regulations may protect people against faulty products, unclean water and air, and other dangers.

L08: Definition and Elements of State

How can we define a state?

The state is a concept of political science and moral reality that exists where a population living in a definite territory are unified under a government which, in internal matters, is the organ for expressing its Sovereignty and, in external matters, is independent of other Governments.

What are the elements of a state?

The state must have certain elements as follows-

- (1) Population
- (2) Government

- (3) Territory
- (4) Sovereignty and independence

What is an Islamic state?

1. An Islamic State is a state that is governed by Muslims and is run according to the principles of Islam.
2. An Islamic state is a state that runs according to the principles of Islam.

A state has the majority of Muslim people, can we say it is an Islamic state?

No, we cannot say it. A state is said to be Islamic not merely because the majority of its population are Muslim unless it follows Shariah in its total administration.

What is the purpose of an Islamic State?

The establishment, maintenance, and development of the virtues and the prevention and eradication of the evils.

What does the Islamic State do to fulfill its purpose?

To fulfill its primary purpose, the Islamic State has four-point duties. These are-

1. Establishing *Salat* (prayer): the state authority should ensure that people pray and get a chance to perform their prayer at a fixed time in each sphere of the state, and non-praying is made a punishable offense.
2. Establishing the institution of Zakat: The Islamic state requires that all those who can pay Zakat pay it to the government's Zakat fund, and it will ensure that due recipients of it get it through the government's arrangement.
3. Enjoining beneficial and virtuous: the government will enjoin what is good and virtuous and encourage the citizens for all kinds of good deeds.
4. It is crucial to avoid and prohibit actions that are harmful and immoral, ensuring that those who commit these actions face consequences that Islam does not advocate.

To fulfill the main purpose the Islamic State has four points' duties. These are-

1. Establishing *Salat* (prayer): the state authority should ensure that people pray and get a chance to perform their prayer at a fixed time in each sphere of the state and non-praying is made a punishable offense.
2. To establish the institution of Zakat- so that all those who are required to pay Zakat, pay it to the Government's Zakat fund and to ensure that due recipients of it get it through the Government's arrangement.
3. To enjoin what is good and virtuous – so that the Government encourages the citizens for all kinds of good deeds.
4. To shun and forbid what is bad and evil – so that the evildoers get punishments for such actions that are not recommended by Islam.

What are the basic principles of an Islamic state?

يَتَأَيُّهَا الَّذِينَ ءَامَنُوا أَطِيعُوا اللَّهَ وَأَطِيعُوا الرَّسُولَ وَأُولِيَ الْأَمْرِ مِنْكُمْ فَإِنْ تَنَزَعْتُمْ فِي شَيْءٍ فَرُدُّوهُ إِلَى اللَّهِ وَالرَّسُولِ إِنْ كُنْتُمْ تُؤْمِنُونَ بِاللَّهِ وَالْيَوْمِ الْآخِرِ ذَلِكَ خَيْرٌ وَأَحْسَنُ تَأْوِيلًا

The Ayah (4:59) discloses five basic principles of an Islamic state. These are:

1. Allah (SWT) is the sovereign lawgiver who must be obeyed without any question.
2. The prophet Muhammad (SM) is also to be obeyed unconditionally as he is Allah's Vicegerent.

3. All other legal authorities will be obeyed conditionally; so long as they obey Allah and the Prophet (SAAS).
4. The dispute is allowed with all other authorities except Allah and His Messenger.
5. There must be a recognized body (Judiciary) to pronounce verdict according to the holy Qur'an and the Sunnah.

Identity of an Islamic State, Philosophy and Necessity of Islamic State, Purpose of Islamic State, Modern National State and Islamic Ideological State: A Comparison, relationship between Government and state.

L09: What are the three organs of a state?

The Executive, the Legislative, and the Judiciary

What is the executive?

1. The Executive refers to the ruling class of a state.
2. It means all government officials except those acting in a legislative and judicial capacity.
3. In its narrow sense, the term refers only to the chief executive or head of the state, the head of the Government, his ministers, and advisers.

What is the Quranic term for the executive?

The Qur'anic term for an executive is '*ulil amr*' which means authority.

What about the obedience of *ulil amr* ?

Obedience to *ulil amr* is made obligatory (*Fard*) for the Muslims after the obedience of Allah (SWT) & His Messenger (SAAS)

Who is the supreme leader of the Islamic state?

The head of an Islamic state elected by the people would be the supreme leader of the people in an Islamic state.

Who enjoyed the position of the supreme leader in the state of *Madina*?

The holy Prophet (SAAS) enjoyed the position of the supreme leader in the Islamic State of Madina.

Who enjoyed the position of the supreme leader after the Prophet (SAAS)?

After the death of the Prophet (SAAS), all the rightly guided caliphs maintained the position.

What are the functions of the executive?

The functions of the Executive depend on the nature of the Government. In an Islamic state, the functions of the Executive, in brief, are as follows.

To manage all sorts of activities for the attainment of the purposes of the state To protect the country from foreign aggression....

- To maintain foreign relations
 - To perform the financial functions
 - To maintain Law and order and run the administration
 - To establish and maintain the publication and broadcasting department and communicate the local and global news to the citizens fairly and impartially
 - To appoint *Hisbah* (ombudsman) for supervising the activities of all the branches of Government
- So, the Executive of a state is responsible for all the affairs of the state and its citizens

What are the Indispensable qualities of leadership (Quality of the head of the state)? From the

Islamic *Sharia*'h viewpoint, the question of qualifications of office-bearers is very important. In fact, this alone can guarantee the proper functioning of the Islamic state. As regards the eligibility for membership of the Shura or for the post of the Head of the state, the Qur'an and Sunnah have given clear guidance. Such as:

1. He must be a Muslim male
2. He will be physically sound and trustworthy
3. He will bear an unblemished Character
4. He will acquire enough knowledge about Islamic Shariah
5. He will be dedicated to the rules of Islam
6. He will be of sufficient age of a complete man
7. He must not have any greed for the post
8. He must be the most Allah-fearing man
9. Able to run the state affairs to the point

Mention some disqualification of women for becoming head of the state? Some disqualification of women for being head of the state.

1. Woman is unfit to lead the prayer (Salah)
2. Attending congregational prayer (Jama'ah) is not obligatory for women.
3. Even if she is present in the Jama'ah, she has to be in the back.
4. She passes the monthly menstruation period regularly, which prevents her from entering into a mosque, even touching the Qur'an is not permissible for her during that period
5. Salatul Jumu'ah (Friday prayer) is not obligatory on her
6. She is not permitted to go with the funeral procession and participate in funeral prayer (salatul Janazah).
7. She is not permitted to go to tour (Safr) with other than her mahram (the person not permitted to marry her like father, brother, etc).
8. Physically and mentally she is not as strong and capable as a man is in handling rough and difficult situations.

How to select the head of the state?

The Qur'an and Hadith have not expressly mentioned how a Head would be elected or selected, but we may get a clear idea of the right path to choose the head of the state if we look to the period of the prophet (SM) and his rightly guided caliphs.

The prophet (SM) was directly appointed by Allah (SWT) and his four rightly guided caliphs were elected in different four ways. These are:

1. The first Caliph Abu Bakr ® was elected through proposal and support
2. The second Caliph Umar ® was elected through the selection
3. The third Caliph Uthman ® was selected by the six-members electoral board
4. And the fourth Caliph Ali ® was selected by the intellectuals of the nation. So, the selection to the executive or the head of the state may be done by any of these processes.

L10: The Legislative

What is the legislative?

It is the law-making body of a state.

What is the name of the legislative assembly of Bangladesh? Jatio Sangsad

What is the Islamic term for legislative assembly?

Majlis e Shura (consultative assembly)

What does *Shura* mean?

1. *Shura* means consultation.

2. Consultation to arrive at a collective decision.
3. *Shura* is a means to collect the opinions of others
4. It is a decision-making process. The word '*Shura*' is used in the Holy Qur'an to denote a decision-making process among the people. Regarding this Allah says:
 "They conduct their affairs by mutual consultation" (Sura al-Shura, 42:38)

Why the legislative assembly is termed as *majlis e shura*?

One of the functions of legislature is to consult with other experts in the relevant field in making Law. This is why the legislative assembly is termed as *majlis e shura*.

How can we justify the importance of *Shura*?

Shura (consultation) in the Islamic political system is so central and fundamental that without it the whole political process is rendered null and void and of no effect. It is as such that even the Prophet (SM) with his special position and direct access to Allah did consult his companions. Because, he was commanded by Allah as saying:

"And consult them in the affairs. Then when you have taken a decision, put your trust in Allah, certainly Allah loves those who put their trust in Allah". (Al-Imran, 03:159).

With regard to this, the Sunnah of the Messenger of Allah is as follows.

"Ali bin Abi Talib (RA) reported that I asked the Messenger of Allah, how do we run our affairs in case of not tracing their solution in al-Qur'an and al- Sunnah? The Prophet said, "It is to be done by calling pious people and by their collective opinion but not by the opinion of a single man".

Can a leader change a decision taken by the process of *Shura*?

No. He cannot do it. If the decision needs a change the leader must call another shura meeting.

Who compose of a *majlis e shura*?

It is composed of the learned and sagacious men who are elected by the people. In this respect, Allah enjoins,

"Ask of those who know scripture if you know not". (Surah Ambia, 21: 7).

Hence the body of the Shura must be learned and sagacious and Allah fearing in all spheres of life"

What about the qualification of a member of Majlis e shura?

Since the Qur'an and the Sunnah are two main sources of Islamic laws, the body of the Shura must be able to do *Ijtihad*. Otherwise, it would be quite impossible for them to perform their duty precisely. A member of Majlis e shura must be qualified enough with the knowledge of *Shariah*. He should be a practicing Muslim and of the age of maturity, sound mind, and good character as well. He should not be convicted in a court of Law and not be a defaulter of a huge amount of loan with a bank or with any individual.

Can a woman be a member of *Majlis e Shura*?

Yes, a woman may also be a member of *Majlis e Shura* if she has the required qualities and qualifications as required by Law.

With whom the Government should consult to run the state affairs?

How does the Government consult with the citizens? Consulting with the representatives of the citizens.

What is the system of legislation in an Islamic state? How should the legislation be in an Islamic state?

Legislation in an Islamic state should be within the limits prescribed by the *Shari'ah*.

What is the prescription of shariah for making Law by *Majlis e shura*?

The injunctions of Allah and His Prophet are to be accepted and obeyed and no legislative body can alter or modify them or make any new laws, which are contrary to their spirit.

Do you think *Shura* has a scope to legislate a new law besides the Holy Quran and Sunnah?

Yes, I think the great scope would still be available for legislation on questions not covered by any specific injunctions of the *Shari'ah*, and the consultative body or legislature is free to legislate in regard to these matters.

How many aspects are there to bring an injunction of Allah (SWT) into the application?

There is no function of legislating in its true sense as in the conventional political system, but searching, and codifying of the injunctions of Allah (SWT) in the light of the Sunnah of Prophet Muhammad (PBUH) as well as perusing the way and occasions to imply these injunctions.

Hence there are four aspects of bringing the injunctions of Allah (SWT) into the application. These are as follows.

1. Giving laws, this function is for Almighty Allah alone.
2. Searching, codifying, and seeking a way to imply the injunctions, is for the *Majlis e shura*
3. Executing the laws, the executive body is duty-bound for this.
4. Based on Islamic laws, solving the conflicts and contradictions among the people and criminal punishment is the duty of the Judiciary.

Parliament and Majlis e Shura: a comparative discussion.

Parliament: The law-making body.

Can the word parliament remain as it is if a state turns into an Islamic state? Parliament is called the Legislative Assembly or Lawmaking body. The Islamic terminology for the same is Majlis al-Shura or consultative Assembly. However, the concept of parliament and Majlis al-Shura are not the same exactly. It is because though both parliament and Majlis al-Shura is the hallmark of democracy, but democracy in Islam and non-Islam is not the same in its conceptual and practical aspects. Under Islamic constitutional Government, the name of parliament can remain as it is but the activities of the said parliament will be different from the present parliament under the Westminster Style of democracy.

Can we use the word parliament instead of Majlis e shura?

Though the concept and function of the parliament and Majlis al-Shura are almost the same Dr. Reaz prefers the term Majlis al-Shura to be used in the Islamic constitution and by the Islamic state. To him, Majlis is the Islamic term used by the Qur'an and Sunnah while the term parliament is used by some of them who perhaps do not believe in Allah. Though both give almost the same meaning yet he justifies the use of the Qur'anic and Sunnatic terms by referring to the following Qur'anic Ayah as Allah (SWT) Says:

“O you! Who believe! Do not say to the prophet (words of ambiguous import) but say (words of respect)”

The words parliament and Shura both have the same meaning. But since the first one is used by disbelievers as their word and term; therefore, an Islamic constitution should maintain the term *Shura* instead of parliament as this is used by al Qur'an.

what are the basic differences between parliament and Majlis al-Shura?

1. Based on the ideology

In Islam source of state ideology or state philosophy and all types of Law, ordinances, Injunctions are considered the *Shari'ah* or Law of Allah nothing else.

On the other hand, the secular system has no state religion. None is accountable for religiousness. Its state ideology is man-made philosophies that are contrary to Islamic Shariah.

2. Based on Sovereignty

Allah is the Sovereign Authority under this system and Muhammad (SM) is the true and real representative of Sovereign Allah and role model in all fields of life. The establishment of the Sovereignty of Allah is positive Law or prime task of the Shura.

On the other hand, Sovereignty under this system does not belong to Allah, but it varies from time and place. Such as Sovereignty in a secular democracy is either parliament or state or constitution or people or representative of the people or natural Law etc. place of Allah and the role of Allah is totally absent under this system.

3. Geographical limitation

4. The legal jurisdiction of the Majlis e shura is not limited in geographical limitation but it has extraterritorial jurisdiction too. It means it would work for the interest of all people in all places of the world irrespective of Muslim and non-Muslim.

On the other hand, the legal jurisdiction of secular parliament is limited within the state that it is meant for. This is because it believes in geographical and linguistic nationalism and state Sovereignty.

5. the concept of vicegerency

The people or citizens under this system are the vicegerents (representatives) of Allah. Absolute power or right of the people cannot extend to or submerge the role or applicability of shariah. Under this system, citizens will have the chance to be real slaves as well as vicegerent of Allah or peace-loving citizens in its real sense.

On the other hand, either right or wrong, people are the lawmakers under this system. The concept of vicegerent or representative of Allah or rightful claimant of the establishment of the Law of Allah by the citizen is absent under this system. The power is vested in the majority (more than 50%) of the total number of seats in the parliament can challenge and change any previous decision of the parliament.

6. Rule of Sharia over man Vs. Rule of man over man

Under this system, the rule of *Shari'ah* (Islamic Law) will be established everywhere. At the same time, the rule of man over man will be eradicated (If such a rule is found to be contrary to shariah).

On the other hand, in this system, initiation, and development of the ideology of the people or a state ideology are from the brain and opinion of the secular-oriented leaders. The rule of man over man takes its firm grips through so-called majority opinion. As such, it makes a man slave to man instead of being the slave of Allah *Ta'ala*.

7. Trusteeship and Sovereignty

Under this system Consultative Assembly (Majlis al-Shura (M.S.) will be the trustee institute of the people. The prime objective of the M.S is the representation of *Shari'ah*. It means the M.S will work for the development of the Law of Allah not for self-aggrandizement.

On the other hand, under this system, the parliament is not a trusted institute but it is sovereign, free from the dictation of Allah and His Messenger. Its members are not concerned whether or not their own made Law goes against Allah or the Law of Allah.

8. Accountability

Members of this Majlis are primarily answerable to Allah and secondly to the nation as a whole for their responsibility imposed on them.

On the other hand, the Member of Parliament under the secular system is answerable, instead of Allah to Prime Minister or President or Parliament or Constitution. Very seldom they are answerable to the citizen in general. In some cases, they are answerable to their respective electoral and it is again to get the support of the people for the next election.

9. Combination between quality and morality

The member of the Majlis must be well equipped with Islamic knowledge together with the knowledge of the contemporary world and they must be of good character and true Muslim in their private and public life.

On the other hand, the character and Islamic knowledge of the lawmaker are out of the question under this system rather wealth and muscle power is the criterion to some extent. In practice, the guarantee of victory is cheating, vote-rigging, and deception.

10. Nomination system and self will

Under this Islamic system making of application or expression of self will become a member of Majlis al-Shura is a sign of disqualification. However, it is the party or Amir of each Islamic party that would select and nominate the person to be a member of Shura, and then under the present system, the party would ask its selected members to go to the election commissioner and apply through the standard form for standing in the election.

On the other hand, under this secular system, an individual applies to the party and sometimes applications are wanted from the party. Whoever is in the good book of party chief party stalwart man, whoever can manage him by whatever means he can only secure his candidanship for the parliamentary election. The question of morality has no place here. There are two qualities that are needed for a person to be a lawmaker in Bangladesh that (a) a citizen of Bangladesh and 25 years of age. See Article 66 (n) of the constitution of Bangladesh.

11. Nature of expression of opinion

Expression of opinion by any member of the Majlis e Shura which is to be found contrary to shariah such as backbiting slandering etc shall be considered a punishable offense.

On the other hand, under this system Member of Parliament is given immunity by which whatever they do in the parliament unless some actions are immuned from any charge. This is the reason; the parliament becomes the place for hatred and malicious talking. This immunity is provided by Article 78 of the constitution of Bangladesh.

12. Prime duty of an MMS and an MP

Under the Islamic system, the member's prime duty is to explain the Law initiated in the Qur'an and Hadith and contribute to making new Law that is not covered by the Qur'an, Hadith, Ijma, and Qiyas. On the other hand, under the contemporary system, the prime duty of the member of parliament is to pay loyalty to the existing secular Law of the country and to contribute to the

further making and development of that Law without considering whether such Law is pro or against the Law of Allah or not.

what are the main functions of a member of Majlis al-Shura?

Different legal experts suggest different functions of the members of the Majlis. According to a proposed constitution, the functions of the members of Majlis al-Shura of a state run by an Islamic constitution are as follows:

- 1) It is to act for the augmentation and up-gradation of honor, dignity, and development of *Shari'ah* (the Islamic Law) for the area in places that are not covered by the *Qur'an*, *Sunnah*, *Ijma*, and *Qiyas* and the said Law must not contradict the Law of Allah and His Messenger.
- 2) It is to examine, scrutinize, and pass the bill presented by the Government or by the *Majlis itself*.
- 3) It is also to examine the existing laws and whether or not these are in line with *shari'ah*.
- 4) It is to approve the budget of the Government or semi-government run by the government fund as well as the audit report of the Government.
- 5) It is to investigate legal institutes and various departments of the Government and approve the said investigation report prepared by relevant authorities.
- 6) It is also to review the plan and philosophy of the relevant Minister and Ministry by questioning or summoning them if it is needed.
- 7) It is to approve or reject the declaration of Government about war and peace.
6. It is to approve all types of agreements relating to inter and international treaties and other commitments of the Government.
7. It is to express the opinion in the session of the Majlis compulsorily. However, the members can enjoy immunity for expressing their opinion so long as it does not go against revealed laws and the interest of the country and its people.

There are some other functions of the members of the Majlis. Such as:

1. To explain the difficult terms of Islam: The legislative assemblies under the Islamic Constitution are not allowed to amend/correct or reject any part of the *Qur'an* and *Sunnah*. Even if there were any need or abrogation, it has already been done by its maker Allah (SWT) and His Messenger. But the Majlis can make the explanation of some very difficult terms of *Qur'an* and *Sunnah* which carries wide meaning and so far, no explanation of these terms has been made by anyone.
2. Adoption of the new Law: The Majlis should attempt to make new laws in the cases which are not covered by *Shari'ah*. That is in a situation where there is no clear text of the *Qur'an* and *Sunnah* or *Ijma'a* and *Qiyas* to solve the problem. Before proceeding with a new law to address the new issue, the Majlis should look into the works of the previous legal experts. If it is found therein then it could be followed. Otherwise, they would try to adopt a new law in the new issues like; Airbus hijacking, test-tube babies, donation of human organs before and after the death of donors, etc.
3. To explain the difficult part of the Law: in the case of one meaning or more than one application of a *Qur'anic* text, the Majlis will explain the real meaning of the relevant text. it is also to assist the Government in codifying the appropriate portion of Law based on the *Qur'anic* text.
4. To undertake research for the application of Law: The Majlis should make the necessary attempt to implement the Law of the constitution. They should therefore research to find out the proper ways to apply the Law.

How many types of majlis e shura are there in an Islamic state?

two types. Majlis al-Shura Al-A'm (Parliament) and Majlis al-Shura al-Khas (senate).

How a member of majlis will be elected or selected?

The member of the Majlis can be elected by the Electoral College consisting of the representatives of the people Such as representative of village and word (in powrashaba)

How long may the majlis continue?

The duration of the Majlis shall not be more than five years.

L11: What is the Judiciary?

The organ which administers impartial judgment according to the Law of the country

What is the Quranic term for the Judiciary?

The Qur'anic term '*Qada*' means administration of justice. It also indicates that is to give an order and judgment. It is a system where the act of deciding or passing decisions on something is rooted in.

How can we define the Judiciary from the Islamic point of view?

1. Judiciary is an institution, which settles all sorts of disputes and disagreements of litigates.
2. To settle the disputes among the people with the *Shari'ah*.
3. The judiciary is to judge among the people hearing the litigants and knowing the true happening and apple of discord

In this sense, there are numerous verses in the Qur'an, for example,

“But when comes to the commandment of Allah, the matter will be decided with truth and the followers of falsehood will then be lost” (40:78).

“It is not for a believer, man or woman when Allah and his messenger have decreed a matter that they should have any option in their decision” (al Ahzab, 33:36).

“And for every Ummah, there is a messenger. When their messenger comes the matter will be judged between them with justice and they will not be wronged” (Younus 10: 47).

From the above Qur'anic expression, it is clear that the Judiciary is a system of divine laws through which all sorts of disputes and disagreements are settled and all kinds of injustices are uprooted.

Why is the Judiciary so important?

Justice in its true sense can only be materialized through the Judiciary. Therefore, it is very important. Because, how good the legislative and executive are it cannot be seen in its optimistic pace without the proper and effective role of the Judiciary.

How can we justify the importance of the Judiciary?

The aim of sending the messengers of Allah with clear signs and sending the scriptures down with them is that the people would uphold justice (Al-Quran, Sura al Hadid, 57:25). If men were able to achieve justice through their intellect there would have no need for revelation. Emphasizing on Judiciary Allah says,

“But no, by your Lord, they can have no faith until they make you judge in all disputes between them and find in themselves no resistance against your decisions and accept with full submission” (An-Nisa 04: 65).

This duty, to establish an Islamic judiciary is not only to the messengers but also to all believers.

Do you think the Judiciary is new in Islam?

The judicial system is not new in Islam rather it was established fourteen centuries ago by the Prophet Muhammad (PBUH) where justice and truth were perpetuated. So, there is no room for doubt that there could be any injustice in an Islamic state. When and wherever in any part of the world Islamic system was established, the people simply not only witnessed but also enjoyed the peace, safety, and justice that were never witnessed in any other system in the world.

What was the nature of the Judiciary before Islam? The nature of Judiciary before Islam was as follows:

1. There was no written law or code at all. The social customs and natural rules were the measurements for all decisions.
2. None was bound to abide by the verdict, nor was there any acceptable standard of carrying out the verdict of the court. As such, the winners had to jump on the losers together with their supporters. By nature, the Arabs used to side with the cause of the victims. Therefore, it was easy to get the attackers. And the decision of the court was not more than moral advice.
3. There was no concept of an independent judiciary, as the tribal head himself was the lawmaker and the chief justice, his word was the Law and his decision was the final decision.

What was the nature of the Judiciary under the Prophetic Rule?

There were several features of the Judiciary under the Prophetic period of the new Islamic state of Madina. These are-

1. The Qur'an and the Sunnah were the primary sources of Judiciary in place of custom and tribalism that was practiced before Islam. As regards the authority of them Allah says, "But no, by your Lord, they can have no faith until they make you judge in all disputes between them and find in themselves no resistance against your decisions and accept with full submission"
2. Acceptance and execution of the decision of the Prophet (SAAS) was made very much compulsory and obligatory; rather it was a vital part of Iman for both of them (a claimant, plaintiff, and defendant)
3. The Prophet was made the Chief Justice in the place of a tribal head. The Prophet (SAA) was the head of all important organs of his government namely executive, legislative, Judiciary, and culture. It was only for him because Qur'an was being revealed for proper judgment of each and every case and all the organs of the state were dependent on Qur'anic revelations. However, the first caliph Abu Bakr (R) separated the Judiciary from the control of the executive and appointed Omar bin Khattab (r) as the chief justice of the state.

What are the main Qualifications of judges?

The judges must have some fundamental qualities, like: -

1. To have profound knowledge of the Qur'an and the Sunnah
2. To have belief in Allah and His Messenger and what he came with.
3. To lead his personal life in accordance with the Islamic Shariah.

If these qualities do not exist together a judge will be like a blind man bearing a lamp in his hand. Neither he can benefit from it nor have others. Besides, he is not safe from stumbling and the lamp either be broken or extinguished. Hence, the judges must meet these conditions.

In addition to the above-mentioned fundamental qualifications, the judges are to have also some other qualities, like Maturity in age; that a minor who has still not attained the age of maturity cannot be a Qadi.

Strength of memory and genius.

The soundness of wisdom and conscience. The authenticity of justness and fairness. Purity of birth.

To be male; though a woman may also be appointed as Qadi in those cases wherein her evidence is admissible.

To be a Muslim; that a non-Muslim is not eligible for holding the office of Qadi. Away from anger, hunger, and over-excitement during the time of trial and judgment. And should never get tired of litigant's lengthy arguments, but they must exhibit patience, perseverance in scanning the details in examining points and sifting facts from fiction.

Since Islam laid down utmost importance on justice and it is dependent on the judges, they should have the capability and maturity of judgment and should meet the above-mentioned conditions.

What is the punishment system for a criminal offense in Islam?

There are three types of punishment according to the provisions of the Qur'an and Hadith. these are-

Hadd: *Hadd* means fixed penalties. This is the form of punishment that is prescribed by the Qur'an and cannot be reduced or modified by human agency. It denotes specific punishment for specific offenses like *zina* (adultery), *saraka* (theft), *sharab* (wine drinking), *qazaf* (defamation/calumny) and *riddah* (apostasy).

Its object is to deter and warn people, from the commission of such actions which are penalized by Hadd. It is inflicted in the same manner both on Muslims and non-Muslims.

Qisas and Diya: *Qisas* means retaliation and *Diya* means blood money. *Qisas* means, in principle, life for life and limb for limb. It is applied to cases of willful killing and certain types of grave wounding or maiming which are characterized as offenses against the human body. It is regarded as the personal right of the victim or his next of kin, to inflict on his victim. Under *Qisas* the relatives or successors of murdered person can exercise the *Qisas*.

Qisas becomes *Diya* when the next kin of the victim are satisfied with money as compensation for the price of blood. This cannot be reduced or modified either by Qazi or the Government. In cases where *Qisas* is available, it could be exchanged with *Diya* or blood money.

Tazir: *Tazir* is another form of punishment that means prohibition and it is applicable to all crimes which are not classified under *Hadd*. It is a discretionary punishment; in all cases for which *Hadd* has not been fixed. Under special circumstances, *Tazir* is being substituted even for *Hadd*. All new offenses known to the Muslim Law in the progress of its development were dealt with under the general head '*Tazir*'. In short, the doctrine of *Tazir* gives wide scope to the judge in inflicting punishment.

The entire system of Islamic Criminal law (which is called al-ahkam as-Sultaniah) is based on the Holy Qur'an and the Sunnah. The Qur'anic and Sunnatic Law goes against any anti-social activities and helps to implement justice in all sectors of a state. Therefore, we may say beyond any doubt that the legal system of Islam can solve all the problems in human society.

Principle of Islamic Judiciary.

The fundamental principles of the Islamic Judiciary are that

- It is not placed under the control of the executive.
- It derives its authority directly from the *Shari'ah* and is answerable to Allah.
- The judges will obviously be appointed by the Government but, once appointed, will have to administer justice impartially according to the Law of Allah. All the organs and functionaries of the Government should come within their jurisdiction. Even the highest executive authority of the Government will be liable to appear in a court of Law as a plaintiff or defendant.

Purpose or aim of administration of justice.

Purpose or objectives of Qada or administrations of justice are as follows:

To protect the weak and punish the wrong doers in the society according to the rules revealed by Allah to His Prophet (SM).

To do justice with a view to the establishment of peace on the earth, concord among humanity, advancement of society and safeguard of social as well as human interest. While doing justice, to be witness of Allah (SWT).

To pass judgment freely and fairly even though it goes against close relative like parents, children or it goes against one's own self and against rich or poor.

To discharge the duties of *khilafah* as imposed by Allah (SWT).

Chapter 04: Citizen, Citizenship

The objective of this chapter.

The main objective of this chapter is to provide students the knowledge about criterion of a citizen and citizenship as well as

There are some specific objectives for this chapter. These are-

- To describe meaning and conditions of citizenship
- To make the students conscious of their duties and responsibilities towards their state and Government

L12: Citizen and Citizenship in Islam

Why are the state and Government established?

For the welfare of the citizen

What type of rights citizenship is? Citizenship is an important birthright

Citizenship is given by whom? It is given by a state.

"Citizenship is given by a state" what does it mean?

It means a nation has no state, has no citizenship rights. Once there is a state then citizenship automatically comes in.

What does the word citizen mean literally?

The word citizen is derived from the Latin word 'civics. It literally means a resident of a city. It was used to mean a resident of a city who enjoys certain privileges of such residence. But the meaning has been extended in the course of time.

What is the present meaning of citizen?

By a citizen at present, we mean a member of a state who enjoys all rights and privileges granted by it and also discharges his duties and obligations towards the state and other associations within it.

What are the conditions for citizenship?

A person will be treated to be a citizen of a state when he fulfills the following conditions:

1. Member of the state
2. Enjoys social and political rights
3. Sentiment of devotion to the state

How does an Islamic state confine citizenship?

An Islamic State confines its citizenship to only those persons who live in its territory or migrate to it. From which Ayat the above concept is born out?

This is borne out by the following verse of the Qur'an:

"Those who believed and migrated and fought for the cause of Allah with their property and persons as well as those accepted the asylum and helped (the Migrants). They all are the friends and protectors of one another. As to those who believed but did not migrate, you (the Prophet) owe no duty to them until they migrate (from their homeland to the Islamic state.)" (Sura Tawbah, 08:72)

Is the Islamic State responsible for the protection and guardianship of those who live outside its territory?

From the above ayah, it is clear to us that citizenship right is reserved only for those Muslims who were either born in or exiled in an Islamic state. The Government of an Islamic state is not a direct guardian of Muslims residing in a non-Islamic state. Hence the Islamic state is not politically responsible for the protection and guardianship of those Muslims who live outside its territory. The Messenger of Allah also says:

“I owe no responsibility for the protection of any Muslim who resides among the Mushriks.” However, this principle does not exclude having a brotherly relationship with those Muslims.

How many types of citizens are there in an Islamic state?

As the Islamic State is an ideological state it prescribes two types of citizenship. These are:

1. Muslim (those who believe in Islam as the complete code of life) and
2. Dhimmi or protected people (those who do not believe in Islam).

What does dhimmi mean?

Dhimmi means protected people. It refers to the non-Muslim citizens of an Islamic state who have affirmed to remain loyal and obedient to it.

How can a dhimmi achieve citizenship right?

The Dhimmi citizen can be born one as well as a migrant one.

What are the matters of a dhimmi citizen that are protected by Islam?

Islam confers the guarantee of protection of life, limb, property, religion, culture, honor, and dignity. In all civil matters, they enjoy the same rights as Muslims do. They are eligible for all kinds of employment except for key posts. They are exempted from taking part in the defense of the state.

What does Allah (SWT) say regarding belief as a criterion of citizenship? As regards belief as to the criterion of citizenship, Allah Ta’ala says:

“Those who believed and migrated and fought for the cause of Allah with their property and persons as well as those accepted the asylum and helped (the Migrants). They all are the friends and protectors of one another. As to those who believed but did not migrate, you (the Prophet) owe no duty to them until they migrate (from their homeland to Islamic state.)” (Sura Tawbah, 8:72)

Nature of wilayah

The word wilayah is a constitutional word that extends the relationship between Muslim and ruler. According to it the Muslims who are to be bounded by wilayat are to be either inhabitants of the Islamic state or immigrants. The Muslims outside the Islamic State will have a relationship of brotherhood and not the relationship of wilayat.

The same is the case with tourists visiting the Islamic state.

What does the word wilayah mean according to the ayat 72 of sura at-Tawbah?

The word wilayat is a very comprehensive term in politics. It means the relationship of help, succor, protection, support, friendship, guardianship, and the like between the citizens and state and the citizen themselves.

Muslims having citizenship rights by birth and by immigration. Muslims have this important and absolute right because the Islamic constitutional state is an ideological state and Muslims only

believe in this ideology and take the burden to run it in accordance with Islamic principles. On this point, the Islamic court and Islamic state alone enforces its laws and obliges them to carry out all its religious, moral, cultural, and political directives. It imposes all obligations and requires every sacrifice for the defense of its territory. It also gives the right to choose the head of the state and members of the legislative assembly. In exchange it entitles them to be appointed to the key posts so that the basic policy of this ideological state remains with strict principles of shariah.

Some Common Rights of the Citizens.

There are some basic rights that the Islamic constitution guarantees to its citizen, both Muslim and Dhimmi. Islam has also laid down certain rights for non-Muslims who are living within the boundaries of the Islamic state. Those rights are:

1. Right to Free Movement
2. Protection of life and Property
3. Participation in the Politics and Government
4. Observance of Personal Law
5. Observance of Own Religion
6. Participation of Trade and Profession

By clear declaration, Islam makes an opportunity for each religious community to follow its own religion or own customs. But if anybody declares himself to be a Muslim, he must follow the rules of Islam accordingly. That is why Islamic Law encourages the people of other faiths to be converted to Islam but strictly prohibits Muslims from abandoning Islam.

What are the duties of citizens?

In Islam, the implication of rights and duties is very important and it bears special significance. There are certain rights of the state upon its citizens. Among these-

1. Obedience. The Prophet (Sm) says:
“The state shall have to be heard and shall have to be obeyed in adversity and in prosperity, and whether it is pleasant or unpleasant to do so.” – Bukhari and Muslim.
2. Devotion- the citizens should be for the state and work for its welfare.
3. Cooperation, which is obligatory on the citizens of the Islamic state.